



**SALENE
CREDIT LTD**

Your Support Our Guarantee

Our Ref: SCL-146
25TH OCTOBER 2024

JUDITH CHEROTICH

P.O BOX 25259-00100

CELLPHONE :0702933315

LOAN FACILITY: KSHS 500,000/= (FIVE HUNDRED THOUSAND SHILLINGS ONLY)

We are pleased to advise you that further to your application dated 25TH OCTOBER 2024, we offer you a credit facility in accordance with the terms and conditions set out in this letter.

1. DEFINITIONS AND INTERPRETATION

In this letter the following words shall have the following meanings:

"Borrower" means

JUDITH CHEROTICH
P.O BOX 25259-00100
ID NO. 27835323

"Lender" means

SALENE CREDIT LIMITED
P.O. Box 364-00618
Ruaraka-Nairobi

2. PURPOSE OF FACILITY

The proposed facility will be used by the borrower for LPO/LSO.

3. AMOUNT OF THE FACILITY AND REPAYMENT

The maximum amount that will be available for draw down under the proposed facility shall not exceed the aggregate sum of Kenya Shillings loan facility: KSHS 500,000/= (FIVE HUNDRED THOUSAND SHILLINGS ONLY). The facility will be repaid directly by the borrower on monthly basis comprising of both principal and interest amounting to Kshs 590,000 (FIVE HUNDRED AND NINETY THOUSAND SHILLINGS ONLY) After 3 Month. The payment shall be done either through Salene Credit Limited KCB account number 1278186832- Kasarani branch, Equity bank account number 1750280157654-Garden City branch or M- PESA Pay bill business no. 4037865, Your ID as the account Number. NCBA BANK PAYBILL NO.880100, ACCOUNT NO.699232

4. INTEREST

All advances made under the proposed facility shall attract interest from the date of draw down (as well as after and before any demand or judgment or the liquidation of the Borrower) at a flat rate of 6 % per month or such other rate as may be determined by the Lender from time to time. The Lender reserves the right to amend interest charges without prior notice to the Borrower.

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5. COMMISSIONS AND OTHER CHARGES BORN BY THE CLIENT

LOAN APPLICATION FEES	: KSH 25,000
PFR	: KSH 5,000
OPERATION COST	: KSHS 3,660
TRACKING	: KSHS 15,000

6. RESPONSIBILITY FOR PAYMENT AND LOAN SETTLEMENT.

Notwithstanding on any payment mode, it shall remain the Borrowers sole responsibility to ensure that all payments are effected on the due date and no payment shall be presumed to have been made until actual receipt of such payment by the Lender.

The borrower may repay the entire loan outstanding at any time after the expiry of first month, and in such case, will be expected to pay in full amount of the outstanding principal and interest.

7. PENALTY INTEREST

If the Borrower fails to pay any sum payable under the proposed facility on its due date, the Borrower shall pay interest on such sums from the date of such failure to the date of actual payment (as well as after and before any demand, judgment or the liquidation of the Borrower) at the rate of Ten per cent (10%) per month on the Principal Due. Cheques will be accepted as mode of payment to Salene Credit Limited but in case of bounced cheque, it will attract a fine of Kshs.5, 000 above bank charges.

8. SECURITY

- The loan shall be secured by both **HOUSEHOLD CHATTELS AND BUSINESS ASSETS.**
- The loan shall be secured by **Motor-Vehicle** of Registration number- **KDC452K-TOYOTA AURIS**
ENGINE NO.1NZ-E680578
- On approval of the loan, Salene credit limited interest in the vehicle pledged as security will be noted in the insurance policy of the vehicle.

During the loan repayment period the vehicle must be transferred into a joint name with the company's (Salene Credit Ltd) name and on full repayment of the loan the vehicle transferred into borrower's name(s). The borrower will meet the cost of such transfer.

Conditions of Sanction

- ✓ Insurance policy over the security motor vehicle to be taken through Salene Insurance agency or an insurer of the borrower's choice from the list of Insurance Underwriters or Brokers licensed by the Insurance Regulatory Authority.
- ✓ All perils insurance policy over the chattels and business assets to be taken through Salene Insurance agency and or an insurer of the borrower's choice from the list of Insurance Underwriters or Brokers Licensed by the Insurance Regulatory Authority with the Bank's interest noted.
- ✓ Security to be perfected before drawdown.

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9. RESCHEDULING/RESTRUCTURING OF A LOAN

If the borrower desires to have his/her loan rescheduled for a shorter or longer period than the period stated in the agreement, the borrower can apply to the company in writing upon payment of Kshs. 5,000 or 5% of the loan outstanding whichever is greater, provided the period of extension does not exceed 12 months in aggregate from the time the loan was taken.

The credit committee will on receiving the application deliberate on the borrower's request and either approve or reject the application and communicates its decision to the borrower in writing.

10. UNDERTAKINGS

So long as the proposed facility is available or outstanding, the Borrower undertakes with the Lender as follows:

- a) The Borrower shall provide the Lender with such information and documents concerning the Borrower's employment/business and financial position and prospects as may from time to time be requested;
- b) In case of payoff by another financier, the borrower will be required to pay the lender an interest of 30% on the outstanding balance.

11. FEES AND EXPENSES

The Borrower shall pay to the Lender on demand on a full indemnity basis, all expenses (including legal fees of the Lender's and the Borrower's Advocates and out-of-pocket expenses together with any taxes if any thereon), auctioneer's costs connected with the recovery of money's owing under the facility as well as the contesting of any involvement in any legal proceedings of whatever nature by the lender for the protection of or in connection with any account(s) or assets of the Borrower and also in connection with the negotiation, preparation and execution of this letter and/or the security documents, the fulfillment of all conditions of the proposed facility and/or otherwise in respect of any monies owing under or in respect of the proposed facility.

12. CREDIT REFERENCE BUREAUS

The Borrower expressly consents and allows the lender to forward personal data and full file credit information to licensed credit reference bureaus.

13. DEFAULT

- a) The following events will constitute default and cause any amount outstanding under the proposed facility to become immediately due and repayable and any commitments hereunder cancelled:
 - (i) The failure of the Borrower to observe or perform any other obligations under this letter and/or the security documents.
 - (ii) If any circumstances arise which in the opinion of the Lender have or may have a material adverse effect on the Borrower's ability to perform its obligations under this letter and/or the security documents?
 - (iii) The Borrower admits in writing its inability to pay or shall become unable to pay its debts generally as they fall due, or become bankrupt or insolvent, or file any petition or action for relief under any bankruptcy, re-organization, and insolvency law.

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- (iv) The Borrower suspends or threatens to suspend its operations or, except in the ordinary course of business, sell, lease, transfer or otherwise dispose of all or any substantial part of the Borrower's assets (whether by a single transaction or by a series) or all or any part of its assets are seized or appropriated by or on behalf of any governmental or other authority or are compulsorily acquired.
- (v) Any of the Borrower's indebtedness is not paid on its due date or becomes due prior to its stated maturity or any guarantee given by the Borrower is not honored when due or called upon. The Borrower will indemnify the Lender against any loss (including loss of profit) or expense which may be incurred as a consequence of any default in payment by the Borrower of any sum hereunder when due and/or the occurrence of any event of default

14. RECOVERY.

The borrower hereby acknowledge that should it become necessary for the lender to institute legal action due to default or non-compliance with the terms and condition herein, the borrower shall be liable for all the costs, including tracing fees, collection commissions and all other related legal recovery costs.

15. DECLARATION BY BORROWER

The borrower declares that: -

- (i) The information supplied by him/her in the loan application form is true and correct in all respects.
- (ii) He/she has authorized Salene Credit Limited to issue the payment on his/her behalf to the holders of account/payee stated in the application form.
- (iii) He understands that if his/her employment is terminated before the loan is fully repaid; the loan then outstanding will immediately become due and payable.
- (iv) He/she is aware that having given the logbook of the motor vehicle used as security for the debt, together with the transfer of the said motor vehicle duly completed and executed in the favour of the Lender he/she acknowledges that: -
 - a) Until the loan is fully repaid, the lender is entitled to make recourse to its security, in the event of any default in payment of any installment.
 - b) The lender is entitled to have the said motor vehicle registration in its (the lender) name, before making such recourse.
 - c) In the event of such defaults the lender is entitled to repossess and dispose the said motor vehicle in such manner as it may in its sole discretion determine to be in its interest.
 - d) He is aware that concealment of the said motor vehicle or the cannibalization thereof, is a fraudulent act, actionable both as a criminal offence and by way of civil action.
 - e) He/she is also aware that failure to make arrangements for the payment of post-dated Cheques, upon presentation for payment, on due date is an offence, punishable under both civil and criminal law.

16. LAW

This letter shall be governed by the laws of the Republic of Kenya. The Borrower hereby irrevocably submits to the jurisdiction of the Kenyan Courts. The submission to jurisdiction by the Borrower shall not prevent proceeding being brought in any other competent Court.

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17. GENERAL

The proposed facility is subject to, (without limitation) to the terms and conditions outlined above. Please sign and return the enclosed copy of this letter by way of acceptance of this offer on the terms and conditions contained herein. The offer contained in this letter will automatically lapse if it is not accepted and delivered to the Lender together with all duly executed documents within 14 days of the date of this letter.

Yours faithfully,
Salene Credit Ltd

Peter Waweru
Relationship Manager.



Mercy Kirimi
Director

I confirm that I have read, understood and accepted the offer contained in this letter subject to the above terms and conditions

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Witnessed by: _____ Date: _____